

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.
Complainant

vs.

FLEXPORT INTERNATIONAL LLC
Respondent

**RESPONDENT'S SECOND MOTION FOR MODIFICATION OF THE
SCHEDULING ORDER**

EXPEDITED RELIEF REQUESTED

COMES NOW, Respondent, Flexport International LLC, by and through its undersigned counsel and files this, its Second Motion for Modification of the Scheduling Order - seeking only an additional three (3) days to file its Reply Brief due to Complainant's failure to timely serve its Appendices to its Initial Brief, and in support thereof states as follows:

At 11:49 PM on Thursday, August 14 2025, Peloton filed its Initial Brief. In a separate email, Peloton served a link to its Confidential Appendix.

The link is to Holland & Knight's Sharepoint drive. When the link is clicked the screen which opens is attached hereto as Exhibit "A".

As can be seen, in order to access the documents, we must allow Holland & Knight t:

- Receive our profile data
- Collect and log our activity
- Use our profile data and activity data

No explanation is provided as to HOW Holland & Knight would “use” the data, or even what data is collected. There is no link to Holland & Knight’s terms of service. In fact, the attached makes clear – in bold – that **“Holland & Knight LLP has NOT provided links to their terms for you to review.”**

The page also states “You should only accept if you trust Holland & Knight LLP.

Thus – the only way to access the documents – containing 11 Gigabytes of data consisting of ALL of the evidence of Peloton in this case – is to submit to Holland & Knight’s terms. In short, there is no logical reason why any attorney, particularly opposing counsel, would agree to this.

As such, 15 minutes later the undersigned requested that counsel send the documents via email or in some manner that does not require the disclosure of information to Holland & Knight.

Despite the undersigned’s email being in response solely to the email containing the link, counsel for Peloton apparently needed clarification as to which documents were being referenced. The undersigned promptly responded, attached Exhibit “A” and provided an explanation.

Ten and a half hours later, counsel for Peloton responded, advising that, as an alternative, they would be willing to have their Miami office PRINT out the documents (consisting of tens of thousands of pages) and courier them to the undersigned, at our cost, of course. Counsel also noted that the video files could be put onto a flash drive.

The undersigned immediately responded, asking why the documents could not all be put on a flash drive. The undersigned again made clear that the documents were to be delivered with the Brief and were untimely. The undersigned also asked Peloton to consent to a 3-day extension of time since the documents would not be received until that afternoon at the earliest. Counsel

Three hours later, having received no response, the undersigned followed up. Counsel finally advised that they were coordinating with their Miami office and the USB drive would be

delivered via courier. Counsel advised that she did not have authority to grant an extension, but that any such request would be opposed. No explanation was provided.

The undersigned was in the office past close of business and no courier arrived. Instead, the courier came after hours – on Friday, August 15, 2025, and left the envelope containing the Confidential Appendix sticking halfway out of the mail slot. See Exhibit “B”.

As such, the undersigned did not receive the Appendix until Monday, August 19, 2025. It is also noted that the Appendix received is indeed Confidential and redacted. No unredacted Appendix has ever been received.

As such, the untimely Appendix should be stricken entirely. In good faith, however, Flexport merely requests additional time – which in all fairness it should have been afforded but for the actions of Peloton’s counsel.

Flexport thus submits that good cause exists for this very brief, three (3) day extension of time to file its Reply Brief and that the new deadline should be September 15, 2025¹

MEET AND CONFER CERTIFICATION

The undersigned certifies that he has met and conferred with counsel for Peloton regarding the relief requested herein. As set forth above, Peloton’s counsel advised multiple times that they opposed any relief requested.

CONCLUSION

For the foregoing reasons, Flexport respectfully submits that good cause exists for extension of the deadline in the Scheduling Order. Flexport accordingly requests that its motion to extend the Scheduling Order be granted.

¹ September 14th is a Sunday.

Given the upcoming deadline, Flexport respectfully requests that the instant motion be considered on an expedited basis.

Dated August 19, 2025

Respectfully submitted,

SPECTOR RUBIN, P.A.

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Flexport International LLC

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the forgoing was served on August 19, 2025 via electronic mail on all parties of record on this matter.

By: /s/ Robert Borak
Robert M. Borak, Esq.